

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander DeSantis	Team: Team # 6	CCRB Case #: 200609109	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 06/10/2006 2:00 PM, Tuesday, 03/27/2007 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/10/2007	Precinct: 70
Date/Time CV Reported Tue, 07/11/2006 5:08 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 07/11/2006 5:08 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Walter Roberts	07908	923047	NARCBBS
2. POM Oghenevigh Okrokoto	01790	927291	NARCBBS
3. POF Megan Omalley	06355	930859	NARCBBS
4. POM Jeremy Demarco	14529	930033	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Walter Roberts	Abuse: On June 10, 2006, Det. Walter Roberts stopped § 87(2)(b)	A . Exonerated
B . DT3 Walter Roberts	Discourtesy: On June 10, 2006, Det. Walter Roberts spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Oghenevigh Okrokoto	Abuse: On June 10, 2006, PO Oghenevigh Okrokoto stopped an individual.	C . Victim Unidentified
D . DT3 Walter Roberts	Abuse: On June 10, 2006, Det. Walter Roberts frisked § 87(2)(b)	D . Exonerated
E . DT3 Walter Roberts	Abuse: On June 10, 2006, Det. Walter Roberts searched § 87(2)(b)	E . Unsubstantiated
F . POM Oghenevigh Okrokoto	Abuse: On June 10, 2006, PO Oghenevigh Okrokoto frisked an individual.	F . Victim Unidentified
G . POF Megan Omalley	Abuse: On March 27, 2007, PO Megan O'Malley questioned § 87(2)(b)	G . Exonerated
H . POM Jeremy Demarco	Abuse: On March 27, 2007, PO Jeremy Demarco frisked § 87(2)(b)	H . Unsubstantiated
I . POF Megan Omalley	Abuse: On March 27, 2007, PO Megan O'Malley searched § 87(2)(b)	I . Unsubstantiated

Synopsis

On June 10, 2006, § 87(2)(b) was inside of her building (§ 87(2)(b) in Brooklyn) when Detective Walter Roberts stopped her, by instructing her to “get the fuck on the wall” (allegations A and B). At this time, PO Oghenevigh Okrokoto stopped an unidentified male (allegation C) with whom § 87(2)(b) had been speaking. Det. Roberts then frisked and searched § 87(2)(b) (allegations D and E). During this time, PO Okrokoto frisked the unidentified male (allegation F). After a few minutes, both civilians were released from the scene.

On March 27, 2007, § 87(2)(b) was on the street outside of § 87(2)(b) in Brooklyn when she observed PO Megan O’Malley and PO Jeremy Demarco. § 87(2)(b) then fled into the building, closing the door behind her and locking the officers outside. When the officers gained entry, PO O’Malley questioned her (allegation G) about her involvement in narcotics activity. PO Demarco allegedly frisked § 87(2)(b) (allegation H) and PO O’Malley conducted a search of her pockets (allegation I). § 87(2)(b) was then released from the scene.

§ 87(2)(b) rejected mediation § 87(2)(b) § 87(2)(g) it is recommended that allegations A, D, and G be *exonerated*, and allegations B, E, H, and I be *unsubstantiated*. § 87(2)(g) it is recommended that allegations C and F be closed as *victim unidentified*. Former Investigator Maria Simeone conducted the investigation, and the undersigned drafted the closing report following her departure.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) filed this complaint in-person at the CCRB on July 11, 2006 (enclosures 5a-5f). She is a § 87(2)(b) black female, § 87(2)(b). At approximately 3:00 p.m. on June 10, 2006, § 87(2)(b) was sitting on the windowsill for about 20 minutes in the lobby of her apartment building at § 87(2)(b) in Brooklyn, when two plainclothes police officers entered the building. The officers entered “looking distressed.” § 87(2)(b) had seen these officers before, and she was familiar with them from another incident in which she was arrested § 87(2)(b). § 87(2)(b) described PO1, identified through the investigation as Detective Walter Roberts, as a black male, wearing a green shirt with blue jeans, over six feet tall, muscular, about 200lbs., and bald. PO2, identified as PO Oghenevigh Okrokoto, was a black male about 5’8” tall and overweight. § 87(2)(b) said she took the elevator to the § 87(2)(b) in order to avoid the police officers. While on the § 87(2)(b) she talked to her friend, described as an elderly man, for approximately three minutes before the two officers came down together from a stairwell. § 87(2)(b) could not provide any additional details regarding her male friend.

Det. Roberts called to her and said “Hey § 87(2)(b) get the fuck on the wall,” and then proceeded to push her on the wall. § 87(2)(b) did not say anything and complied with the officer’s instructions. The elderly man she was previously talking to came out and proceeded to witness this action. § 87(2)(b) stated that her minor daughter was also present for the incident. § 87(2)(b)’s daughter then alerted § 87(2)(b)’s girlfriend, § 87(2)(b) in § 87(2)(b) about her mother and the police officers. § 87(2)(b) exited the apartment shortly after and Det. Roberts told her to face the wall next to an incinerator by PO Okrokoto.

Det. Roberts then frisked § 87(2)(b) and searched her pockets, asking her if she was “scared.” The search went on for approximately six to seven minutes before Det. Roberts left. At some point while Det. Roberts was searching § 87(2)(b) he said, “you always have a crack vial in your pocket,” but the officer did not recover any contraband that day.

§ 87(2)(b) came to the CCRB again on April 3, 2007 to report an additional interaction with police officers (enclosures 6a-6c). § 87(2)(b) stated that on March 27, 2007, she entered her apartment building located at § 87(2)(b) in Brooklyn, after going to the corner store to purchase lottery tickets. As she entered, two plainclothes officers knocked on the front door of the building and asked her to let them in. One of the officers § 87(2)(b) identified by name as PO Meghan O’Malley. She described the other officer, identified through investigation as PO Jeremy Demarco, as a white male. § 87(2)(b) did not want to let the officers in because she believed they were harassing her, so she walked to the

elevator and got inside. There was another tenant, who she knows by the name of ‘§ 87(2)(b) but did not have any additional information about him, inside of the elevator. The doors closed and then opened again and an unidentified uniformed, heavy set male officer was standing outside of the elevator and asked her why she did not let PO O’Malley and PO Demarco into the building. He told § 87(2)(b) to exit the elevator and she told ‘§ 87(2)(b) to get her girlfriend, § 87(2)(b). § 87(2)(b) was in the lobby hallway and PO Demarco and PO O’Malley approached her and the unidentified uniformed officer walked away. PO Demarco frisked § 87(2)(b) and asked her for identification. § 87(2)(b) provided identification, and PO Demarco then left the building for a few minutes. While he was gone, PO O’Malley searched § 87(2)(b)s pockets. PO O’Malley placed her hands inside of § 87(2)(b)s waistband, lifted her shirt and placed her hands up it. § 87(2)(b) was so angry that she lifted her shirt all the way up so that PO O’Malley could see that she did not have anything and exposed her bra. When PO Demarco returned, he gave § 87(2)(b) her identification and then he and PO O’Malley left.

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) testified at the CCRB on July 11, 2006 (enclosures 7a-7c). She stated that on June 10, 2006, she was inside of her apartment located at § 87(2)(b) in Brooklyn, when one of § 87(2)(b)s children, who is a minor, entered the home and told § 87(2)(b) that the police were in the stairwell and had stopped § 87(2)(b). § 87(2)(b) who lives with § 87(2)(b) looked out of the peephole and saw a black male officer approximately 6’2” tall with short hair in plainclothes frisking and searching § 87(2)(b)s pockets. § 87(2)(b) and the officer, identified by the investigation as Detective Walter Roberts, were behind the exit door but § 87(2)(b) stated she was able to see them because there is a glass window on the exit door. § 87(2)(b) was wearing very baggy clothing and jeans that hung low between her legs. § 87(2)(b) watched Det. Roberts and § 87(2)(b) for a few seconds and then opened the door and heard Det. Roberts say to § 87(2)(b) that she always has something on her, meaning drugs. § 87(2)(b) told Det. Roberts not to plant anything on her and Det. Roberts responded by asking her why he would do such a thing. Det. Roberts asked § 87(2)(b) who the unidentified man was and § 87(2)(b) did not respond. Det. Roberts then released § 87(2)(b) and left. § 87(2)(b) did not hear Det. Roberts use any profanity. § 87(2)(b) did not become involved in the incident.

Additional Civilian Victim and Witness

§ 87(2)(b) could not provide the name or any contact information for the other individual who was stopped with her on June 10, 2006. Although a stop and frisk report was prepared for this individual (referenced below), the report contains no information about this person’s identity, other than his being an older black male. Similarly, § 87(2)(b) had no information about ‘§ 87(2)(b) the witness in the March 27, 2007 incident. § 87(2)(g)

Detective Walter Roberts

Stop and Frisk Report

Det. Roberts filled out a stop and frisk report for § 87(2)(b) (enclosure 8a) which stated that she was stopped on June 10, 2006 because of a suspicious bulge, evasive answers to police inquiry and presence in a high crime area. Det. Roberts used minimal physical force to place § 87(2)(b) against the wall and frisked her because of furtive movements. The duration of the stop lasted approximately five minutes. According to the report, § 87(2)(b) was not searched.

CCRB Statement

Detective Walter Roberts testified at the CCRB on December 5, 2006 (enclosures 9a-9b). Det. Roberts is a § 87(2)(b) black male, § 87(2)(b). On June 10, 2006 Det. Roberts worked from 2:25 p.m. to 8:00 p.m. and was assigned to Brooklyn South Narcotics Division. He had been conducting buy and

bust operations with Lt. Christopher Coll, Det. Osvaldo Rosado, Det. Paul Zito, PO Oghenevigh Okrokoto, Det. Michael Delfino, PO Ricardo Bocachica, § 87(2)(e) He was dressed in plainclothes. His memo book did not have any entries relating to the incident.

Det. Roberts stated that on June 10, 2006, § 87(2)(b) Lt. Coll instructed him and PO Okrokoto to conduct a vertical search of the building § 87(2)(e) Det. Roberts described the location as a six story residential building that has two entrance doors and stairwells to the right and left. Det. Roberts and PO Okrokoto entered the building § 87(2)(e) and he and PO Okrokoto walked up the stairs. They observed an older black male talking to a black female, who was known to Det. Roberts as § 87(2)(b) § 87(2)(b). Upon seeing the officers, § 87(2)(b) grabbed a bulge on her waistband, which he feared was a weapon. She then walked in the opposite direction and the unidentified man remained stationary. Det. Roberts walked towards § 87(2)(b) and told her to stop by calling out her name, which she did about 10 feet away from where PO Okrokoto had stopped the unidentified man. § 87(2)(b) turned around towards Det. Roberts and he told her to place her hands on the wall. § 87(2)(b) did as instructed and Det. Roberts explained why he was stopping her. Det. Roberts felt the area of § 87(2)(b)'s clothing where he had seen a bulge and felt excessive fabric. Det. Roberts did not continue to frisk § 87(2)(b) and did not search her once he realized she did not have any concealed weapons. § 87(2)(b) screamed "Don't put nothing on me" at Det. Roberts. § 87(2)(b) "had an attitude" and was very upset. He denied ever telling her to "get the fuck against the wall" and PO Okrokoto never had any interaction with § 87(2)(b) Det. Roberts asked if she knew the man and she said she did not. Det. Roberts released § 87(2)(b) without further incident and she continued to walk down the hall in the opposite direction of where PO Okrokoto had remained with the unidentified male. Det. Roberts did not observe any of PO Okrokoto's interactions with the man while he was with § 87(2)(b) Det. Roberts walked over to PO Okrokoto and he informed Det. Roberts that the man did not live there. The officers escorted the man out of the building and then resumed their duties

PO Oghenevigh Okrokoto

Stop and Frisk Report

PO Okrokoto prepared a stop and frisk report in reference to the unidentified individual stopped with § 87(2)(b) on June 10, 2007 (enclosures 10a-10b). The report indicates that the individual refused to provide his name or address, but he was described as an older black male. PO Okrokoto noted the reasons for the stop and frisk as "actions indicative of engaging in a drug transaction, furtive movements, and suspicious bulge." The individual was frisked but not searched.

CCRB Statement

PO Oghenevigh Okrokoto testified at the CCRB on December 5, 2006 (enclosures 11a-11b). He is a § 87(2)(b) black male, § 87(2)(b). On June 10, 2006, he worked from 2:35 p.m. to 11:00 p.m. with the narcotics team doing buy and bust operations with Det. Walter Roberts in plainclothes and assigned to the chase car, which was an unmarked Ford van. There were no entries in his memo book regarding the incident. The supervising officer, Lt Christopher Coll, instructed PO Okrokoto and Det. Roberts to go to § 87(2)(b) in Brooklyn to do a vertical sweep of the building. The location is a residential building and the doors are always opened. § 87(2)(e)

§ 87(2)(b) PO Okrokoto and Det. Roberts walked to the § 87(2)(b) and saw two people, § 87(2)(b) and an unidentified light skinned black male, talking to each other. There were no other civilians in the hallway. When the officers started to approach them, § 87(2)(b) and the man split up. PO Okrokoto approached the man and Det. Walter approached § 87(2)(b) PO Okrokoto asked what he was doing and the man said that he was visiting someone but did not know what apartment number. The man was unable to answer any of PO Okrokoto's questions and was unable to explain his presence in the building. PO Okrokoto observed a bulge in the man's front right pocket and told the man that he was going

to frisk him for both of their safety. The man did not have a problem with this and was compliant to the frisk. PO Okrokoto believed he requested the man's identification and he relayed the information verbally. PO Okrokoto stated that he patted down the front and back of the man's body and when he felt the bulge he saw, PO Okrokoto asked the man to show him what was inside. At the same time PO Okrokoto heard § 87(2)(b) scream, "Don't plant no shit on me!" PO Okrokoto turned around to make sure Det. Roberts was okay and saw that he was. The man then showed PO Okrokoto that the bulge in his pocket was his cell phone. PO Okrokoto filled out a stop and frisk report for the man. PO Okrokoto did not know and details about what transpired between Det. Roberts and § 87(2)(b) and did not recall any civilians in the vicinity. PO Okrokoto had never seen § 87(2)(b) or the man prior to this incident and did not know if Det. Roberts knew either of them. § 87(2)(b) lived in the building and was released while PO Okrokoto and Det. Robert escorted the unknown individual out because he was trespassing. The man walked away and PO Okrokoto and Det. Robert resumed their operations. The entire stop lasted between 45 seconds and two minutes

PO Megan O'Malley

CCRB Statement

PO Megan O'Malley testified at the CCRB on April 20, 2007 (enclosures 13a-13b). She is a § 87(2)(b) old Caucasian female with red hair and brown eyes. On March 27, 2007, she worked in the prisoner van from 2:30 p.m. to 11:00 p.m. with PO Demarco and dressed in plainclothes. There were no entries in her memo book regarding the incident.

PO O'Malley stated that she and the narcotics team had been conducting routine operations in the vicinity of § 87(2)(b) which she described from prior experience as being an extremely high crime and narcotics area. She was driving north bound on § 87(2)(b) to § 87(2)(b) and noticed § 87(2)(b) a 5'8" tall, stocky, light skinned black female, who is known to the officers § 87(2)(b), on the opposite street corner talking to a small bald man. § 87(2)(b) and the unidentified man were engaged in a conversation during which time they looked around several times and were behaving nervously and trying to conceal their actions, which was suspicious. PO O'Malley saw the man walk away and § 87(2)(b) looked up and noticed the van. Once § 87(2)(b) saw the officers, she ran into § 87(2)(b). PO O'Malley intended to stop § 87(2)(b) to question her regarding whether she had sold drugs to the man on the street. PO Demarco exited the van first and then they attempted to follow § 87(2)(b) into the building, however the door locked automatically after § 87(2)(b) entered. PO O'Malley and PO Demarco had their shields out yelling that they were police officers. Someone opened the front door for the officers, and held the elevator door that § 87(2)(b) had entered. PO O'Malley stated that there is usually a uniformed officer on a fixed post inside of the building, but she did not see any other officers present at the time. When PO Demarco and PO O'Malley entered the building, § 87(2)(b) exited the elevator and approached them in the entrance of the building lobby, screaming, "What the fuck do you want? The DT's are always on my ass. You guys wanna fucking search me? I'm tired of this shit. I'm gonna sue you." PO O'Malley asked § 87(2)(b) about the man on the street and § 87(2)(b) said, "Fuck you, I don't have to tell you shit man. You just want to search me." PO O'Malley knows § 87(2)(b) from numerous previous occasions and believed that § 87(2)(b) would have fled by that point if she had any narcotics on her. PO Demarco left PO O'Malley with § 87(2)(b) briefly to retrieve his phone from the van. PO O'Malley and PO Demarco did not frisk or search § 87(2)(b). PO O'Malley stated that because § 87(2)(b) was making such a scene they did not question her any further. The incident lasted less than a minute.

PO Jeremy Demarco

CCRB Statement

PO Jeremy Demarco testified at the CCRB on July 10, 2007 (enclosures 15a-15b). He is a § 87(2)(b) white male with brown hair and blue eyes. On March 27, 2007 he worked narcotics from 2:33 p.m. to 11:00 p.m. with PO Megan O'Malley. He was in plainclothes and assigned an unmarked vehicle. He did not have any entries in his memo book.

stated that PO O'Malley initiated the stop and questioned § 87(2)(b) during the encounter. § 87(2)(g)

Disputed and Undisputed Facts

It is undisputed that § 87(2)(b) was speaking with an unidentified male in the hallway of her building on June 10, 2006 when Det. Roberts and PO Okrokoto approached and stopped them. It is undisputed that Det. Roberts frisked § 87(2)(b) and PO Okrokoto frisked the unidentified male § 87(2)(b).

It is undisputed that PO O'Malley and PO Demarco observed § 87(2)(b) on the street in front of her building on March 27, 2007. § 87(2)(b) then fled into the lobby of the building to avoid the officers, and they followed her in. After the officers entered, they questioned § 87(2)(b) regarding a conversation she had with a man on the street § 87(2)(g).

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation Not Pleaded

§ 87(2)(b) alleged that Det. Roberts stopped § 87(2)(b) on June 10, 2006 and instructed her to stand facing a wall. However, during her telephone statement § 87(2)(b) never made this allegation, stating that she only observed Det. Roberts frisk and search § 87(2)(b) but did not become involved at all. § 87(2)(g)

Allegation A: On June 10, 2006, Det. Walter Roberts stopped § 87(2)(b)

In *New York Search and Seizure*, Barry Kamins states, "Whenever an individual is actually or constructively detained by virtue of a significant interruption of his liberty of movement, the individual has

been seized within the meaning of the Fourth Amendment.” § 87(2)(g)

Penal Law section 140.05 states, “A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises.” § 87(2)(g)

It is therefore recommended that allegation A be *exonerated*.

Allegation D: On June 10, 2006, Det. Walter Roberts frisked § 87(2)(b)

Det. Roberts claimed that after stopping § 87(2)(b) he observed a bulge on her person. § 87(2)(g)

In *New York Search and Seizure*, Barry Kamins discusses the “bulge cases,” stating, “In these cases, the police were initially justified in making an inquiry of a suspect, and upon approaching the suspect observed a bulge on the suspect’s person... The decisions reflect the view that the police may protect themselves during a lawful inquiry by patting down a bulge on the individual to whom they are directing their questions.” § 87(2)(g)

It is therefore recommended that allegation D be *exonerated*.

Allegation B: On June 10, 2006, Det. Walter Roberts spoke rudely to § 87(2)(b)

Allegation E: On June 10, 2006, Det. Walter Roberts searched § 87(2)(b)

§ 87(2)(g)

it is therefore recommended that allegations B and E be *unsubstantiated*.

Allegation C: On June 10, 2006, PO Oghenevigh Okrokoto stopped an individual.

Allegation F: On June 10, 2006, PO Oghenevigh Okrokoto frisked an individual.

Neither § 87(2)(b) nor PO Okrokoto was able to provide any identification information for the unknown male stopped and frisked on June 10, 2006. § 87(2)(g)

it is recommended that allegations C and F be closed as *victim unidentified*.

Allegation G: On March 27, 2007, PO Megan O’Malley questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that allegation G be closed as *exonerated*.

Allegation H: On March 27, 2007, PO Jeremy Demarco frisked § 87(2)(b)

Allegation I: On March 27, 2007, PO Megan O'Malley searched § 87(2)(b)

Both officers denied that the encounter on March 27, 2007 escalated beyond the mere questioning of § 87(2)(b) about her involvement with the man on the street. PO O'Malley additionally stated that there was no need to frisk or search § 87(2)(b) because if § 87(2)(b) had any contraband on her, she would likely have continued to flee from the officers. § 87(2)(g)

it is therefore recommended that allegations H and I be *unsubstantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: